

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

THE OTHER WOMAN AND THE	:	CASE NO. 24 CV 00498
WIFE, LLC,	:	
	:	(Judge Stacy M. Wall)
Plaintiff and Counterclaim Defendant,	:	
vs.	:	
	:	JOINT MOTION FOR
KRISTEN JACOBS,	:	EXTENSION OF THE DEADLINE
	:	FOR THE PLAINTIFFS TO
Defendant and	:	DISCLOSE EXPERTS AND TO
Counterclaim/Third-Party Plaintiff,	:	<u>EXCHANGE EXPERT REPORTS</u>
vs.	:	
	:	
CHELSEA SMALLWOOD,	:	
	:	
and	:	
	:	
OLIVIA NICODEMUS,	:	
	:	
Third-Party Defendants.	:	

Pursuant to Civ.R. 6(B)(1) and for good cause shown, the Parties jointly move for a 30-day extension of time, to and including November 2, 2025, for the plaintiffs to disclose their expert(s) and to produce expert report(s) and curricula vitae. As demonstrated in the memorandum in support of this Motion, which is incorporated by reference here, the Parties agree that additional time is needed to disclose their experts and to exchange expert reports despite good faith efforts to comply with the current deadline, October 2, 2025. Moreover, the

requested extension is timely, not made for purposes of delay, will not impact any other deadlines, and no prior extensions of the expert disclosure deadline were made.

A proposed Order granting this Motion is attached as Exhibit A.

Respectfully submitted,

/s/ Anthony V. Graber by /s/ Morgan K. Napier
per email consent on 9/24/2025
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Counsel for Defendant Kristen Jacobs

**MEMORANDUM IN SUPPORT OF
JOINT MOTION FOR EXTENSION OF THE DEADLINE FOR THE PLAINTIFFS
TO DISCLOSE EXPERTS AND TO EXCHANGE EXPERT REPORTS**

Pursuant to Civ.R. 6(B)(1) and for good cause shown, the Parties jointly move for a 30-day extension of the deadline for the plaintiffs to disclose experts and to produce expert reports and curricula vitae ("Expert Discovery Deadline") to and including November 2, 2025.

It is within the Court's discretion to permit the Parties additional time to disclose and produce expert reports in this case when, like here, the request is made before the disclosure deadline and for cause shown. Here, the requested extension is timely and good cause exists to permit an extension of the Expert Discovery Deadline.

First, the current Expert Discovery Deadline is on October 2, 2025; making this Motion timely. Second, the requested extension is not made for purposes of delay or necessitated as a result of delay. Before pursuing discovery in earnest, the parties discussed resolution of this dispute. As a result, the parties are still working to obtain discovery necessary to support expert opinions. The short extension is requested to allow the parties additional time to complete such discovery. Third, no additional deadlines in the Court's May 28, 2025 Scheduling Order will be impacted by the requested extension. Finally, there have been no previous extensions of the Expert Discovery Deadline.

For these reasons, the Court should grant the Motion and extend the Expert Discovery Deadline to and including November 2, 2025.

Respectfully submitted,

/s/ Anthony V. Graber by /s/ Morgan K. Napier
per email consent on 9/24/2025

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Counsel for Defendant Kristen Jacobs

CERTIFICATE OF SERVICE

I certify that on the 25th day of September, 2025, the foregoing Joint Motion for Extension of the Deadline for the Plaintiffs to Disclose Experts and to Exchange Expert Reports was filed via the Court's eFile system and served via electronic mail pursuant to Civ.R.

5(B)(2)(f) upon the following counsel of record:

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The Other Woman and the Wife, LLC
and Third-Party Defendant Chelsea Smallwood

/s/ Morgan K. Napier
Morgan K. Napier

EXHIBIT A

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CIVIL DIVISION

THE OTHER WOMAN AND THE	:	CASE NO. 24 CV 00498
WIFE, LLC,	:	
	:	(Judge Stacy M. Wall)
Plaintiff and Counterclaim Defendant,	:	
vs.	:	
	:	[PROPOSED] ORDER
	:	GRANTING JOINT MOTION
KRISTEN JACOBS,	:	FOR EXTENSION OF THE
	:	DEADLINE FOR THE
Defendant and	:	PLAINTIFFS TO DISCLOSE
Counterclaim/Third-Party Plaintiff,	:	EXPERTS AND TO EXCHANGE
vs.	:	<u>EXPERT REPORTS</u>
	:	
CHELSEA SMALLWOOD,	:	
	:	
and	:	
	:	
OLIVIA NICODEMUS,	:	
	:	
Third-Party Defendants.	:	

Pursuant to Civ.R. 6(B)(1), for good cause shown, and the reasons stated in the Joint Motion for Extension of the Deadline for the Plaintiffs to Disclose Experts and to Exchange Expert Reports ("Motion"), the Motion is **GRANTED**. The Other Woman and the Wife, LLC as Plaintiff and Kristen Jacobs as Third-Party Plaintiff have to and including November 2, 2025 to disclose their expert(s) and to exchange expert report(s) and curricula vitae.

IT IS SO ORDERED.

<{Judge Signature}>

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